

APPEAL OF ADMINISTRATIVE DECISIONS

Several administrative decisions made by the School Division are appealable by parents and legal guardians of students and by adult students. Appeals to a Select Committee of the School Board of administrative decisions are permitted only when authorized by specific School Board policies and regulations. Where a specific policy permits an appeal but does not specifically set forth an appellate process, this policy provides procedures for appealing administrative decisions.

A. Procedures for Appeal to a Select Committee of the School Board.

1. Appeals must be submitted in writing to the Superintendent or designee within 10 school days of the notification of the decision that is the subject of the appeal. The appeal must fully state the reasons and basis for the appeal and a summary of the essential facts.

2. The Superintendent or designee shall notify the Chair of the School Board of the receipt of the appeal. The Chair of the School Board shall appoint a committee of three members to review the appeal and appoint one of those members as Chair of the committee.

3. The Superintendent or designee shall collect statements from all persons involved in making decisions related to the case. These statements shall contain a summary of the essential facts of the case and the basis of each decision, including references to applicable School Board policies. A copy of these statements shall be provided to each member of the committee considering the appeal. At the same time, such statements shall be provided to the appellant(s).

4. The committee shall review the statements of school personnel and the appeal of the parents/guardians and adult or emancipated students and may affirm or annul the decision of the Superintendent or designee on the basis of this review. If the committee makes a decision on the basis of this review, that decision shall be communicated to the appellant(s), and shall be reported in the minutes of the Select Committee of the School Board for Hearing Appeals posted in BoardDocs for that date.

5. If the committee determines that it needs more information, the committee chair shall request additional information from either side prior to a final decision by the committee. The committee chair shall set reasonable deadlines for providing the additional information. Any additional information collected by the committee will be provided to the Superintendent or designee and to the appellants. Additionally or alternatively, as the case may be, if the committee believes doing so may provide additional clarity on the information the parties initially provided, the committee may elect to allow the parties to attend a hearing wherein the committee may request additional information for either/both parties.

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6. This appeals procedure shall be completed, and a decision communicated to the appellant(s), within 30 days of the receipt of the appeal by the Superintendent or designee, except that any additional time allowed under (A)(5) for collection and processing of additional information will be added to the 30 days, in which case such appeals process shall be completed, and a decision communicated to the appellant(s) as soon as practicable.

7. A summary of the committee's findings and decision, redacted for personally identifiable student information, will be provided to all School Board members. The decision of the Select Committee of the School Board shall be final and not further appealable.

B. Exclusions. Complaints not covered by this or any other policy may be brought to the attention of the principal or other administrator for resolution, in accordance with Policy 8070 (Written Comments and Complaints).

[Former Policy 2-20]

Adopted: 2/14/78

Revised: 7/10/84, 9/13/88, 6/22/93, 10/9/01, 11/11/03, 4/25/06, 8/10/10, 2/26/13, 11/29/16

Confirmed: 9/30/21 (with technical changes)

Current Revision: 06/09/26

Legal Refs.: Va. Code §§ [22.1-78](#) and [22.1-253.13:7\(C\)\(6\)](#)

Cross Refs.: Policy [6210](#), Student Transportation; Policy [8070](#), Written Comments and Complaints; Policy [8155](#), School Assignment; Regulation [6620](#), Access Control on Loudoun County Public Schools (LCPS) Property; Policy [8160](#), Exceptions to School Assignment Due to Attendance Zone Change